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U.S. Department of State Diplomacy in Action

Egypt

Country Reports on Human Rights Practices

Bureau of Democracy, Human Rights, and Labor

2000

February 23, 2001

According to its Constitution, Egypt is a social democracy in which Islam is the state religion. The National Democratic Party (NDP), which has governed since its establishment in 1978, has used its entrenched position to dominate national politics and maintains an overriding majority in the popularly elected People's Assembly and the partially elected Shura (Consultative) Council. President Hosni Mubarak was reelected unopposed to a fourth 6-year term in a national referendum in September 1999. The Cabinet and the country's 26 governors are appointed by the President and may be dismissed by him at his discretion. The judiciary is independent; however, there is no appellate process for verdicts issued by the military or State Security Emergency courts.

There are several security services in the Ministry of Interior, two of which are involved primarily in combating terrorism: The State Security Investigations Sector (SSIS), which conducts investigations and interrogates detainees, and the Central Security Force (CSF), which enforces curfews and bans on public demonstrations, and conducts paramilitary operations against terrorists. The President is the commander in chief of the military; the military is a primary stabilizing factor within society but generally does not involve itself in internal issues. The security forces committed numerous serious human rights abuses; however, the use of force in the campaign against suspected terrorists appeared more limited than in previous years.

Egypt is in transition from a Government-controlled economy to a free market system. The Government continued its privatization program, although some key sectors of the economy (such as banking, oil/gas, insurance, and textiles) still are dominated by State-owned enterprises. Agriculture remains the largest employer and is almost entirely in private hands. The tourism sector generates the largest amount of foreign currency. Petroleum exports, Suez Canal revenues, and remittances from approximately 2 million citizens working abroad are the other principal sources of foreign currency. These income sources are vulnerable to external shocks. Over the past decade, the Government has enacted significant economic reforms, which have reduced the budget deficit, stabilized the exchange rate, reduced inflation and interest rates significantly, and built up substantial reserves. However, low international oil prices, the 1997 Luxor terrorist attack, and the effects of the Southeast Asia economic crisis all negatively affected foreign exchange earnings in from 1997 through 1999, causing the trade and current account balance deficits to widen and negatively affecting the exchange rate. After initially attempting to stabilize the exchange rate by drawing down reserves, increasing interest rates, rationing foreign exchange, and implementing restrictive trade measures, the Government allowed the exchange rate to depreciate slowly in the second half of 2000. Continued progress in economic development depends primarily upon implementation of a wide range of structural reforms, the pace of which has slowed significantly over the past 1 to 2 years. The per capita gross domestic product (GDP)

is about \$1,400 per year. Official statistics place 34.4 percent of wage earners in the agricultural sector, and knowledgeable observers estimate that perhaps 3 to 5 percent of those engage in subsistence farming. The annual population increase is 1.9 percent.

The Government generally respected the human rights of its citizens in some areas, and its record improved somewhat over the previous year, primarily due to a decrease in terrorist activity by Islamic extremists; however, the Government's record was poor with respect to freedom of expression and its treatment of detainees, among other areas. The dominant role of the President and the entrenched NDP control the political scene to such an extent that citizens do not have a meaningful ability to change their Government. In parliamentary elections that were held between October 18 and November 15, the NDP won 172 seats, independent candidates won 255 seats, and opposition parties won 17 seats. However, many of the independents elected were former members of the NDP who rejoined the party after being elected, leaving the People's Assembly balance at 388 NDP members, 37 independents, and 17 opposition party members out of 444 elected members, with two seats unresolved at year's end. Due to court-ordered supervision by the judiciary of the voting and vote-counting, the process was fairer and more transparent than past parliamentary elections; however, there were significant problems, including the arrests of thousands of members of the Muslim Brotherhood in the months before the elections.

The Emergency Law, which has been in effect since 1981 and was renewed for another 3 years in June, continues to restrict many basic rights. The security forces continued to arrest and detain suspected members of terrorist groups. In combating terrorism, the security forces continued to mistreat and torture prisoners, arbitrarily arrest and detain persons, hold detainees in prolonged pretrial detention, and occasionally engage in mass arrests. In actions unrelated to the antiterrorist campaign, local police killed, tortured, and otherwise abused both criminal suspects and other persons. The Government took disciplinary action against police officers accused of abusing detainees, including prosecution of several offenders, but it did not pursue most cases or seek adequate punishments. The investigation that the Public Prosecutor reopened and expanded in 1999 regarding police brutality and torture during a 1998 police investigation of a double murder in the largely Coptic village of Al-Kush in Sohag governorate, continued without resolution throughout the year.

Prison conditions remain poor. The Ministry of Interior released more than 1,300 political detainees and prisoners, bringing the total number of detainees released since 1998 to more than 7,000. The use of military courts to try civilians continued to infringe on a defendant's right to a fair trial before an independent judiciary. During the year, the Government did not refer any new cases involving civilians to the military courts; however, the military court issued its verdict on November 19 in a trial involving 20 leaders of the Muslim Brotherhood, who were referred to the court in October 1999 on charges of illegal political activity. Three of the defendants were sentenced to 5 years in prison, 12 were sentenced to 3 years, and five were acquitted. Most observers believe that the Government was seeking to undermine Muslim Brotherhood participation in the elections to professional syndicates and the People's Assembly.

The Government used the Emergency Law to infringe on citizens' privacy rights. Although citizens generally express themselves freely, the Government partially restricts freedom of the press. The Government significantly restricts freedom of assembly and association. The Government places restrictions on freedom of religion. Despite difficulties due to an inadequate legal framework and periodic Government harassment, a number of local human rights groups are active. Although the Government does not recognize them legally, it allows these groups to operate openly.

Domestic violence against women is a problem. Although the Government enforces the 1996 decree banning the practice of female genital mutilation (FGM), many families persist in subjecting their daughters to the traditional practice. Women and Christians face discrimination based on tradition and some aspects of the law. Adult literacy rates are 63 percent for males and 34 percent for females. There were no reports of terrorist attacks against Christians during the year, but in incidents unrelated to terrorism 1 Christian was killed and 10 were wounded by Muslim extremists. New year's violence in Sohag governorate resulted in the deaths of 21 Christians and 1 Muslim. Child labor remains widespread, despite Government efforts to eradicate it. Exposure of workers to hazardous working conditions and other abuses of the law by employers continue, and the Government does not enforce the labor laws effectively. The Government limits workers' rights.

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no reports of political killings; however, police committed extrajudicial killings, and such killings also may have occurred in certain antiterrorist operations.

Human rights organizations and the press reported on the death in custody of the following eight persons during the year, all of whom allegedly were tortured while being detained by police under suspicion of criminal activity: Sami Hosni Ahmed, Ahmed Hassan Ahmed, Mohamed Tawfik Hassan Sayyed, Sayyed Kenawi Selim, Abdel Hamid Ramadan Abdel Hamid Zahran, Ahmed Mohamed Eissa, Haytham Mohamed Abdel Aziz, and Mohamed Islam Nasr Eddine (see Section 1.c.). In addition, several cases of death under police torture from previous years remain unresolved.

Mohammed Mahmoud Hamouda died in prison during the year, reportedly due to diabetes and cardiac problems, during the Government's investigation of a case in which 16 persons were accused of heresy against Islam (see Sections 1.e. and 2.c.).

The London-based Islamic Observation Center announced on December 22 that 37-year-old Mohammed Saad Osman Ahmad died in Tora prison in early December due to untreated leukemia. Ahmad allegedly had completed a 5-year prison sentence in 1998 but was not released.

On June 6, the Banha Criminal Court (Daqahliyya governorate) sentenced police Captain Abdel Nasser Zeidan of the Shubra Al-Kheima investigations department to a 1-year suspended sentence for killing a suspected thief. The officer reportedly raided the home of 19-year-old Mosaad Ahmed Youssef in March without an arrest or search warrant and shot him three times in the back and head. On August 10, the Mansoura criminal court acquitted a police major and four other policemen in the April 9, 1998 death under torture of Waheed Al-Sayyid Ahmad Abdallah (see Section 1.c.).

As part of ongoing antiterrorist campaigns, on October 19, security forces killed two members of the "Islamic Group of Egypt" (IG) in Aswan, including Alaa Abdel Razek Atiyya, who reportedly was in charge of IG armed operations in Qena, Sohag, and Luxor. There were no reports of killings of relatives of suspected extremists by security forces in apparent vendettas.

A trade dispute between a Christian clothing merchant and a Muslim customer on December 31, 1999, escalated into violent exchanges between Muslims and Christians in Sohag governorate, resulting in the deaths of 21 Christians and 1 Muslim. One trial concluded in September and another was ongoing at year's end (see Section 5).

On June 22, a State Security Emergency court sentenced four members of a terrorist group from the upper (southern) Egyptian city of Dairout who were accused of murder and attempted murder of policemen and Christians in the early 1990's to 5 years' imprisonment at hard labor (see Sections 1.e. and 5.).

b. Disappearance

There were no reports of new cases of politically motivated disappearances.

In November the Human Rights Center for the Assistance of Prisoners reported on a total of 26 unresolved disappearances, including 3 previously unreported cases of persons who disappeared in 1996 and 1997. The Center learned that three persons previously reported missing are in prison, and that two disappearances did not involve police. The Egyptian Organization for Human Rights (EOHR) continues to investigate 30 previously reported disappearances. EOHR has provided these names to the U.N. Committee on Disappearances, but the Government reportedly has denied any involvement in these cases.

On February 8, the Court of Cassation accepted an appeal by the Minister of Interior of a 1999 court decision ordering him to pay Bahaa Al-Amary, the wife of former Libyan Foreign Minister Mansur Kikhiya, \$27,000 (100,000 Egyptian pounds). Kikhiya's family sued the Government following reports that he had been kidnaped from Cairo by Libyan agents, taken to Libya, and executed there in 1994. The court awarded the sum as compensation for the Ministry of Interior's inability to protect a foreign dignitary on Egyptian soil. The Court of Cassation ordered that the case be retried due to a technicality. The lower court had not tried the case by year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits the infliction of "physical or moral harm" upon persons who have been arrested or detained; however, torture and abuse of detainees by police, security personnel, and prison guards is common.

Under the Penal Code, torture of a defendant or giving orders to torture are felonies punishable by hard labor or 3 to 10 years' imprisonment. If the defendant dies under torture, the crime is one of intentional murder punishable by a life sentence at hard labor. Arrest without due cause, threatening death, or using physical torture is punishable by temporary hard labor. Abuse of power to inflict cruelty against persons is punishable by imprisonment of no more than 1 year or a fine of no more than \$33 (125 Egyptian pounds). In addition, victims may bring a criminal or civil action for compensation against the responsible Government agency. There is no statute of limitation in such cases.

Despite these legal safeguards, there were numerous credible reports that security forces tortured and mistreated citizens. Reports of torture and mistreatment at police stations remain frequent. While the Government has investigated torture complaints in criminal cases and punished some offending officers, the punishments do not conform to the seriousness of the offense.

While the law requires security authorities to keep written records of detained citizens, human rights groups report that such records often are not available, not found, or that the police deny any knowledge of the detainee when inquiries are made about specific cases, effectively blocking the investigation of torture complaints.

Human rights groups believe that the SSIS continues to employ torture. Torture takes place in SSIS offices, including its headquarters in Cairo, and at Central Security Force camps. Torture victims usually are taken to an SSIS office, where they are handcuffed, blindfolded, and questioned about their associations, religious beliefs, and political views. Torture is used to extract information, coerce the victims to end their antigovernment activities, and deter others from similar activities.

In January the EOHR released a report documenting in detail 13 cases of torture that occurred in police stations during the latter half of 1999, 2 of which ended in death. Methods of torture employed by the police, as reported by victims, included: Being stripped and blindfolded; suspended from a ceiling or doorframe with feet just touching the floor; beaten with fists, metal rods, or other objects; doused with hot or cold water; flogged on the back; burned with cigarettes; and subjected to electrical shocks. Some victims, including female detainees or family members of detainees, report that they have been forced to strip and threatened with rape.

Human rights organizations and the press reported on the death in custody of eight persons, reportedly under police torture, during the year (see Section 1.a.). All were being held on suspicion of criminal activity. The Human Rights Center for the Assistance of Prisoners reported the death under torture of Ahmed Mohamed Eissa on February 10 in New Valley Prison. Upon receiving a report of the death, the Public Prosecutor investigated the case and took testimony from inmates. The Public Prosecutor referred the Deputy Chief of Wadi Natroun Prison, a prison officer, and two policemen to the criminal court on charges of beating an inmate to death and forging a prison report stating that the death was from natural causes. The Shebeen El-Kom criminal court is reviewing the case, but no date for a court hearing had been set by year's end.

The EOHR is investigating the following deaths in custody after receiving complaints from family members of the deceased, who believe they died under torture: Sami Hosni Ahmed, who died on February 9 at the Boulaq police station in Cairo, just hours after his arrest; Ahmed Hassan Ahmed, who died on March 2 at the Shubra Al-Kheima police station in Qalyubia, 4

days after his arrest; 17-year-old Mohamed Tawfik Hassan Sayyed, who died on March 5 in the Gamaliyya district of Cairo; Sayyed Kenawi Selim, who died on March 7 in the Imbaba district in Cairo, 10 days after his arrest on suspicion of theft; Abdel Hamid Ramadan Abdel Hamid Zahran, who died on March 11 at the Qalyub police station in Qalyubia, shortly after returning from interrogation in the Qalyub Security Directorate. An autopsy report in the Zahran case reportedly cited respiratory and cardiac failure as the cause of death and noted a blood clot in the brain, broken ribs, and bruises in the kidney area.

In addition, the press reported the following deaths in custody, which reportedly were due to police torture or mistreatment: Haytham Mohamed Abdel Aziz, who reportedly died in Alexandria prison under suspicious circumstances (according to the press, a forensic postmortem showed several obvious bruises, as well as tuberculosis) and Mohamed Islam Nasr Eddine, a 49-year old Pakistani sentenced to life at hard labor for drug possession, who reportedly died in Qanatir prison from severe failure of the circulatory system. The latter incident was under police investigation at year's end.

Regarding judicial action on previous cases of death under torture, on August 10, the Mansoura criminal court acquitted a police major and four other policemen in the April 9, 1998 death under torture of Waheed Al-Sayyid Ahmad Abdallah. According to a human rights organization, the accused police major paid Abdallah's family to change their testimony, which led to the acquittal. On November 16, the Aswan Criminal Court ruled on case in which Mohei Eddin Ahmed Mohamed, who was suspected of theft at a construction site, was tortured for 3 days in a police station, which led to his death in March 1999. A fellow worker who reportedly tried to intervene on the suspect's behalf, Haroun Ahmed Hamdallah, also was tortured and left paralyzed. The court dismissed an Aswan police officer from the force and sentenced him to 7 years in prison, and dismissed an assistant officer and sentenced him to 3 years in prison. The Government took no action during the year on several outstanding cases of death under torture, including the case of Gamel Mohammed Abdallah Mustafa (in 1998), the case of a businessman in the province of Qalyubia (1997), and the case of Mohammed Badr Al-Din Gomah (1996). The Government also took no action regarding the appeal of 1-year sentence given to a policeman convicted of engaging in torture in 1994. No further government action appears likely in these cases.

At year's end, the public prosecution continued to interview residents of the village of Al-Kush regarding a 1998 murder investigation, during which, according to local observers, dozens of suspects reportedly were tortured and mistreated. The public prosecution reopened and expanded the case in August 1999, 5 months after it had decided that medical evidence did not support allegations of police torture (see sections 2.c and 5.).

Prison conditions remain poor. Government authorities reported the renovation or construction of 14 prisons during the past 6 years. Nonetheless, human rights groups report that overcrowding and unhealthy conditions continue. Cells are poorly ventilated, food is inadequate in quantity and nutritional value, drinking water often is polluted, and medical services are insufficient. Such conditions contribute to the spread of disease and epidemics. The use of torture and mistreatment in prisons continues to be common. In August 1999, the Public Prosecutor ordered his subordinates to visit prisons under their jurisdiction randomly at least once a month. He also instructed them to inspect prison records and to investigate complaints raised by prisoners. Inspections began after the announcement and continued during the year. Results of the inspections were unavailable.

Relatives and lawyers often are unable to obtain access to prisons for visits. In January the Ministry of Interior opened to visits the Fayyoun prison, which had been closed since 1997. Prisons in Abu Zaabal and Tora remain closed to visits. During the year the Human Rights Center for the Assistance of Prisoners obtained 66 rulings by the Higher Administrative court to open the prisons for visits to individual prisoners; 30 other cases are pending before the courts. Human rights groups report that despite the rulings, visits continue to be refused at several prisons. At other prisons, restrictions have been placed on visits to prisoners who are incarcerated for political or terrorist crimes, limiting the number of visits allowed each prisoner and the total number of visitors allowed in the prison at any one time.

In September the Ministry of Interior ordered that prisoners who have served their sentences be released directly rather than transferred to State Security Directorates for processing, which in the past resulted in delayed releases for some prisoners. The Human Rights Center for the Assistance of Prisoners reported that the policy had not been put into effect by year's end.

for political prisoners, who still were being transferred to State Security for processing after serving their sentences.

In principle human rights monitors are permitted to visit prisoners in their capacity as legal counsel; however, in practice they often face considerable bureaucratic obstacles that prevent them from meeting with prisoners. The International Committee of the Red Cross (ICRC) does not have access to prisons.

d. Arbitrary Arrest, Detention, or Exile

As part of the Government's antiterrorist campaign, security forces conducted mass arrests and detained hundreds of individuals without charge. Police also at times arbitrarily arrested and detained persons. Under the provisions of the Emergency Law, which has been in effect since 1981, the police may obtain an arrest warrant from the Ministry of Interior upon showing that an individual poses a danger to security and public order. This procedure nullifies the constitutional requirement of showing that an individual likely has committed a specific crime to obtain a warrant from a judge or prosecutor.

The Emergency Law allows authorities to detain an individual without charge. After 30 days, a detainee has the right to demand a court hearing to challenge the legality of the detention order and may resubmit his motion for a hearing at 1-month intervals thereafter. There is no maximum limit to the length of detention if the judge continues to uphold the legality of the detention order, or if the detainee fails to exercise his right to a hearing.

In addition to the Emergency Law, the Penal Code also gives the State broad detention powers. Under the Penal Code, prosecutors must bring charges within 48 hours or release the suspect. However, they may detain a suspect for a maximum of 6 months, pending investigation. Arrests under the Penal Code occur openly and with warrants issued by a district prosecutor or judge. There is a system of bail. The Penal Code contains several provisions to combat extremist violence. These provisions broadly define terrorism to include the acts of "spreading panic" and "obstructing the work of authorities."

During the year, security forces arrested large numbers of persons allegedly associated with the Muslim Brotherhood, which the Government has declared an illegal organization. Attorneys for those arrested say that during the year approximately 5,000 persons were arrested; a domestic human rights organization documented 694 arrests. Most of those arrested had been released by year's end. Public prosecution officials claim that none of the 5,000 was detained administratively and that those still in detention are being held pending investigation of specific charges. On November 19, a military court issued its verdict in a trial involving 20 leaders of the Muslim Brotherhood referred to the court in October 1999 on charges of illegal political activity. Three were sentenced to 5 years in prison, 12 were sentenced to 3 years, and 5 were acquitted. Most observers believe that the Government was seeking to undermine Muslim Brotherhood participation in the elections to the People's Assembly and professional syndicates (see Sections 1.e., 2.b., and 3).

Police also detained students participating in demonstrations several times during the year. Approximately 75 students were arrested in May when protests at Al-Azhar University against the novel "A Banquet for Seaweed" turned violent (see Section 2.a.). In October at Cairo University and Ayn Shams University, police arrested approximately 40 students protesting Israeli actions against Palestinians in Israel, the West Bank, and Gaza in the fall. According to human rights organizations, all those arrested in the two incidents had been released by year's end, some on bail pending investigation of charges.

In contrast to previous years, there were no confirmed reports during the year that converts to Christianity were subjected to harassment by the security services. Hassan Mohamed Ismail Mohamed, one of four converts previously prevented from traveling, was able to travel abroad in August (see Section 2.c.).

Human rights groups reported that hundreds, perhaps thousands, of persons detained under the Emergency Law have been incarcerated for several years without charge. The courts have ordered the release of several of these detainees, but prison officials reportedly have ignored the orders. The Ministry of Interior frequently reissues detention orders to return detainees to prison. During the year more than 1,300 political detainees and prisoners were released, bringing the total number of

detainees released in the past 3 years to more than 7,000. Following the releases, revised prison population estimates by local human rights organizations indicate that there are approximately 15,000-16,000 political detainees; it is not clear how many among them are charged and awaiting trial, convicted and serving sentences, or detained without charge.

The Government does not use forced exile.

e. Denial of Fair Public Trial

The judiciary is independent; however, cases involving national security or terrorism may be handled by military or State Security Emergency courts, in which constitutional protections may not be observed. In addition, judicial orders sometimes are ignored by the authorities. The Constitution provides for the independence and immunity of judges and forbids interference by other authorities in the exercise of their judicial functions. The President appoints all judges upon recommendation of the Higher Judicial Council, a constitutional body composed of senior judges and chaired by the president of the Court of Cassation. The Council regulates judicial promotions and transfers. In the last few years, the Government has added lectures on human rights and other social issues to its training courses for prosecutors and judges.

In the civilian court system there are criminal courts, civil courts, administrative courts, and a Supreme Constitutional Court. There are three levels of regular criminal courts: Primary courts, appeals courts, and the Court of Cassation, which represents the final stage of criminal appeal.

The judicial system is based on the Napoleonic tradition; hence, there are no juries. Misdemeanors that are punishable by imprisonment are heard at the first level by one judge and at the second level by three judges. Felonies that are punishable by imprisonment or execution are heard in criminal court by three judges. Criminal courts also have a State Security division to hear cases considered affecting state security; in these courts the defendant may appeal on procedural grounds only. The Court of Cassation hears appeals of criminal court rulings. Civil courts hear civil cases and administrative courts hear cases contesting government actions or procedures; both systems have upper-level courts to hear appeals. The Supreme Constitutional Court hears challenges to the constitutionality of laws or verdicts in any of the courts.

A lawyer is appointed at the court's expense if the defendant does not have one. Appointed lawyers are drawn from a roster that is chosen by the Bar Association; however, expenses are incurred by the State. Any denial of this right is grounds for appeal of the ruling. However, detainees in certain high security prisons alleged that they were denied access to counsel or that such access was delayed until trial, thus denying counsel the time to prepare an adequate defense. A woman's testimony is equal to that of a man's in court. There is no legal prohibition against a woman serving as a judge, although in practice no women serve as judges (see Section 5).

Defense lawyers generally agree that the regular judiciary respects the rights of the accused and exercises its independence. In the past, criminal court judges have dismissed cases in which confessions were obtained by coercion. However, while the judiciary generally is credited with conducting fair trials, under the Emergency Law, cases involving terrorism and national security may be tried in military or State Security Emergency courts, in which the accused do not receive all the constitutional protections of the civilian judicial system.

In 1992 following a rise in extremist violence, the Government began trying cases of persons accused of terrorism and membership in terrorist groups before military tribunals. In 1993 the Supreme Constitutional Court ruled that the President may invoke the Emergency Law to refer any crime to a military court. This use of military and State Security Emergency courts under the Emergency Law since 1993 has deprived hundreds of civilian defendants of their constitutional right to be tried by a civilian judge.

The Government defends the use of military courts as necessary in terrorism cases, maintaining that trials in the civilian courts are protracted and that civilian judges and their families are vulnerable to terrorist threats. Some civilian judges have confirmed that they fear of trying high visibility terrorism cases because of possible reprisal. The Government claims that civilian defendants receive fair trials in the military courts and enjoy the same rights as defendants in civilian courts.

However, the military courts do not ensure civilian defendants due process before an independent tribunal. While military judges are lawyers, they are also military officers appointed by the Minister of Defense and subject to military discipline. They are neither as independent nor as qualified as civilian judges in applying the civilian Penal Code. There is no appellate process for verdicts issued by military courts; instead, verdicts are subject to a review by other military judges and confirmation by the President, who in practice usually delegates the review function to a senior military officer. Defense attorneys have complained that they have not been given sufficient time to prepare defenses and that judges tend to rush cases involving a large number of defendants.

During the year, the Government did not refer any civilians to the military courts. However, on February 24, the Government executed two members of the "Jihad Group in Egypt" who had been sentenced by military courts to death in absentia in 1994 and 1997. On November 19, a military court issued its verdict in a case that the Government referred to it in October 1999 involving 20 professional leaders of the Muslim Brotherhood charged with belonging to an illegal group. Fifteen of the defendants were given sentences ranging from 3 to 5 years, and 5 were acquitted. The arrests and trial before the military courts coincided with preparations for elections to the boards of professional syndicates and to the People's Assembly; verdicts and sentencing took place after delays, and after the Assembly elections were over (see Sections 1.d., 2.b., and 3).

The State Security Emergency courts share jurisdiction with military courts over crimes affecting national security. The President appoints judges to these courts from the civilian judiciary upon the recommendation of the Minister of Justice and, if he chooses to appoint military judges, the Minister of Defense. Sentences are subject to confirmation by the President but may not be appealed. The President may alter or annul a decision of a State Security Emergency court, including a decision to release a defendant.

During the year, State Security Emergency courts issued verdicts in five cases. On April 13, a State Security Emergency Court, trying the case of 14 defendants alleged to be members of the Islamic Group, sentenced 1 defendant to death, 1 to life in prison, and the other 12 to sentences ranging from between 3 and 10 years. On June 5, a State Security Emergency Court upheld an earlier ruling issued in absentia against Muhammad Mustafa Hassan, who allegedly was a member of the "Returnees from Afghanistan" group. Hassan was sentenced to 10 years at hard labor. On June 22, a State Security Emergency court sentenced four members of a terrorist group from the upper (southern) city of Dairout who were accused of murder and attempted murder of policemen and Christians in the early 1990's to 5 years in prison. On September 5, a State Security Emergency Court passed a verdict in the case of 16 defendants led by Manal Wahid Mana'a who were accused of heresy against Islam (see Section 2.c.). The court sentenced Mana'a to 5 years' hard labor, three other defendants to 3 years' hard labor, seven defendants to 1 year hard labor, two defendants to 6 months in prison, and two defendants to a fine of \$375 (1000 Egyptian pounds). One of the defendants died in prison, reportedly from ill health during the investigation. On September 15, a State Security Emergency Court ruled in the case of 10 defendants, 4 of them women, accused of propagating extremist ideas in Giza and Alexandria from 1990 to 1999. The court sentenced two of the defendants to 15 years' hard labor, one to 3 years' hard labor, two to 3 years in prison, and five (including the four women) to 1 year in prison.

On November 18, the State Security division of the South Cairo criminal court (in which the defendant may appeal on procedural grounds only) began hearing the government's case against Saad Eddin Ibrahim, Director of the Ibn Khaldoun Center for Development Studies (see Sections 2.a. and 4).

According to local human rights organizations, there are approximately 15,000-16,000 political detainees. It is not clear how many among them are charged and awaiting trial, convicted and serving sentences, or detained without charge (see Section 1.d.).

International humanitarian organizations do not have access to political prisoners (see Section 1.c.).

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution provides for the sanctity and secrecy of homes, correspondence, telephone calls, and other means of communication; however, the Emergency Law abridges the constitutional provisions regarding the right to privacy, and the Government used the Emergency Law to infringe on these rights. Police must obtain warrants before undertaking searches and wiretaps. Courts have dismissed cases in which warrants were issued without sufficient cause. Police officers who conduct searches without proper warrants are subject to criminal penalties, although penalties seldom are imposed. The Emergency Law empowers the Government to place wiretaps, intercept mail, and search persons or places without warrants. Security agencies frequently place political activists, suspected subversives, journalists, foreigners, and writers under surveillance, screen their correspondence (especially international mail), search them and their homes, and confiscate personal property.

The Ministry of Interior has the authority to stop specific issues of foreign-published newspapers from entering the country on the grounds of protecting public order; it exercises this authority sporadically (also see Section 2.a.).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government partially restricts these rights. Citizens openly speak their views on a wide range of political and social issues, including vigorous criticism of Government officials and policies, but generally avoid certain topics, such as direct criticism of the President.

Dr. Saad Eddin Ibrahim, director of the Ibn Khaldoun Center for Development Studies, was put on trial November 18 in a case that most observers believe will have broad implications for freedom of expression. Local observers believe that Ibrahim was prosecuted because of public remarks that he made regarding high-ranking officials that exceeded unwritten limits regarding freedom of expression. Ibrahim was charged with violating the Penal Code by disseminating abroad false information about Egypt, bribing public officials in order to obtain media coverage of Ibn Khaldoun Center activities, misappropriating funds obtained from the European Union (EU), and falsifying documents in order to obtain funds. He also was charged with violating a 1992 military decree prohibiting any citizen or domestic organization from accepting foreign funds without Government permission (his organization accepted \$246,226 (261,000 Euros) from the EU). Twenty-seven employees of the Center also were charged with aiding and abetting Ibrahim in the alleged activities. The Government arrested Ibrahim and closed the Ibn Khaldoun Center on June 30. Ibrahim and the other defendants were released on bail on August 10, and Ibrahim was charged formally on September 26. At the November 18 opening session of Ibrahim's trial before a Higher State Security Court, the three-judge panel granted a defense request for continuance and postponed the next hearing until mid-January 2001.

Observers remain concerned about several aspects of the ongoing trial, especially regarding questions of due process: First, Ibrahim and many of the other defendants were not served formally with their indictments or court papers prior to the trial; second, Ibrahim's request for discovery of the documents that were confiscated from the Ibn Khaldoun Center, which his lawyers claimed were necessary to prepare his defense, had not been granted by the judicial authorities by year's end; and third, Ibrahim is being tried in a State Security Court, from which defendants may appeal once only on procedural grounds, but may not appeal the verdict itself (see Section 1.e.).

In May the Public Prosecutor dropped the Government's case against EOHR secretary general Hafez Abu Se'da. Abu Se'da and EOHR attorney Mustafa Zidane had been charged in December 1998 with violating two articles of the Penal Code (dissemination of false information or inflammatory propaganda that harms public security or public interests and accepting foreign funds with the intent to harm national interests). The charges were dropped in February, and Abu Se'da instead was charged with violating a 1992 military decree prohibiting any Egyptian individual or organization from accepting foreign funds without Government permission, before the case ultimately was dropped altogether in May. The charges against Zidane also were dropped. The charges were based on an EOHR report that was critical of police conduct during a 1998 murder

investigation in Sohag. The State Security Prosecutor alleged that the EOHR had accepted \$25,000 from the British Embassy in Cairo to publish the critical report. In fact, the money was provided by the British Embassy to support a women's legal aid project begun in 1995 (see Sections 2.b. and 4).

The Government owns stock in the three largest daily newspapers, and the President appoints their editors in chief. Although these newspapers generally follow the government line, they sometimes criticize government policies. The Government also holds a monopoly on the printing and distribution of newspapers, including those of the opposition parties. The Government used its monopolistic control of newsprint to limit the output of opposition publications.

Opposition political parties publish their own newspapers but receive a subsidy from the Government and, in some cases, subsidies from foreign interests as well. Most newspapers are weeklies, with the exception of the dailies Al-Wafd and Al-Ahrar, both of which have small circulations. Opposition newspapers frequently publish criticism of the Government. They also give greater prominence to human rights abuses than do state-run newspapers. All party newspapers are required by law to reflect the platform of their party. The Government suspended publication of the semiweekly newspaper Al-Shaab in May following a decision by the Political Parties Committee to withdraw recognition from the Islamist-oriented Socialist Labor Party (see Section 3).

The Constitution restricts ownership of newspapers to public or private legal entities, corporate bodies, and political parties. There are numerous restrictions on legal entities that seek to establish their own newspapers, including a limit of 10 percent ownership by any individual. In January 1998, the People's Assembly approved a law that requires newspapers managed by joint stock companies to obtain the approval of the Prime Minister prior to publishing. Given government restrictions, a joint stock company is the only feasible incorporation option for publishers.

The Government permitted the establishment of one new publication during the year and allowed two others to resume publication. The Ministry of Culture began publishing a new weekly newspaper, Al-Qahira, using the existing license of another publication. In May the Court of Ethics ruled that it did not have the jurisdiction to review a government appeal of a January 1999 Supreme Constitutional Court ruling on a 1981 decree that abolished a monthly publication called Al-Mawqif Al-Arabi, thus allowing publication of the monthly to resume after nearly 20 years. In August the Higher Administrative Court overturned a 1999 government decision to revoke the license of the newspaper Sawt Al-Umma for alleged violations by the publisher of joint stock company regulations. The newspaper later resumed publication.

Several other publications failed to obtain licenses or lost related court cases, thereby losing the right to publish. In June the Higher Administrative Court overturned a lower court decision that would have allowed the newspaper Al-Karama to be published, after the publisher contested the Prime Minister's refusal to act on his request for approval of a joint stock company formed to publish the paper. In June the Higher Administrative Court upheld a lower court decision to stop publication of the Liberal Party publication Akhbar Al-Beheira, based on an article in the Political Parties Law providing that no party with fewer than 10 members in parliament may publish a newspaper.

Because of the difficulties in obtaining a license in Egypt, several publishers of newspapers and magazines developed for the country's market have obtained a foreign license. Most of these publications are printed in the free trade zone. Newspapers and magazines published under a foreign license may be distributed with government permission. However, the Department of Censorship in the Ministry of Information has the authority also to censor or halt distribution of publications printed in the free trade zone under a foreign license. In April the Ministry confiscated one issue of the foreign-licensed newspaper Al-Tadamun, reportedly due to an article it contained that supported Iraq. The English-language weekly newspaper the Middle East Times reported no government censorship of its articles during the year. The newspaper closed its offices and moved to Cyprus in October for financial reasons. The Center for Human Rights and Legal Assistance in 1999 organized a legal challenge to the constitutionality of the Information Ministry's censorship of offshore publications. The Supreme Constitutional Court began hearing the case in December, but had not issued a decision by year's end.

The Penal Code, Press Law, and Publications Law govern press issues. The Penal Code stipulates fines or imprisonment for criticism of the President, members of the Government, and foreign heads of state. The Supreme Constitutional Court agreed in 1998 to review the constitutionality of those articles of the Penal Code that specify imprisonment as a penalty for journalists convicted of libel. The case was scheduled to begin in January 2001. The Press and Publication Laws ostensibly provide protection against malicious and unsubstantiated reporting. Financial penalties for violations were increased substantially in 1996 when relevant provisions of the Penal Code were revised, but the judicial process remains long and costly, creating a bar to realistic legal recourse for those wrongly defamed. In recent years, opposition party newspapers have within limits published articles critical of the President and foreign heads of state without being charged or harassed. The Government continues to charge journalists with libel. In October 1999, the Public Prosecutor charged editor Mohamed Hassan Al-Banna and journalist Fouad Fawaz of the weekly newspaper Al-Khamis with insulting Libyan leader Mu'ammar Al-Qadhafi. The case reportedly was settled out of court during the year.

In 1996 the People's Assembly approved a revised Press Law following criticism of a more restrictive revision that had been approved in 1995. The People's Assembly also revised certain articles in the Penal Code pertaining to libel and slander. In addition in 1997 the Supreme Constitutional Court declared unconstitutional Article 195 of the Penal Code under which an editor in chief could have been considered criminally responsible for libel contained in any portion of the newspaper. The Court ruled that the correct standard of responsibility should be "negligence." The courts subsequently applied this lesser standard.

Courts tried several prominent cases of slander during the year. In April the Court of Cassation upheld a 1999 criminal court conviction of four journalists from the opposition daily newspaper Al-Shaab of libeling Youssef Wally, the Deputy Prime Minister and Minister of Agriculture. Editor in chief Magdy Hussein and reporter Salah Bedewi were sentenced to 2 years in prison, and each was fined about \$5,300 (20,000 Egyptian pounds). Cartoonist Essam Hanafi received the same fine and a 1-year sentence. A fourth Al-Shaab journalist, Adel Hussein, was convicted of libel and fined the same amount. In a separate case in May, five journalists from Al-Shaab (Magdy Hussein, Essam Hanafi, Talaat Rumeih, Adel Hussein, and Amer Soliman) were given sentences ranging from fines of about \$2000 (7,500 Egyptian pounds) to 6 months in prison for slandering businessman Hussein Sabour. Hussein, Bedewi, and Hanafi all were released by year's end. In April the Court of Misdemeanors sentenced five journalists from the newspaper Al-Ahrar (Salah Qabadaya, Hossam Soliman Moussa, Mohamed Abdel Fahim Aboul Nour, Hisham Mohamed Mustafa, and Nabil Sadek Rizkallah) to 6 months in prison at hard labor and fines of about \$2000 (7,500 Egyptian pounds) each for slander against Egypt Air President Fahim El-Rayyan. During the year the courts also acquitted six journalists of slander and dismissed one case. Journalist Ashraf Ayoub's 1-year sentence for libel in 1999 was dropped during the year, after the newspaper that he worked for, Al-Ahali, published a retraction and the businessman who had charged Ayoub withdrew his complaint.

On occasion, and based on authority granted to him by law, the Public Prosecutor may issue a temporary ban on the publication of news pertaining to cases involving national security in order to protect the confidentiality of the cases. The length of the ban is based on the length of time required for the prosecution to prepare its case. In contrast to 1999, the Public Prosecutor did not ban any news items during the year.

The law provides penalties for individuals who disclose information about the State during emergencies, including war and natural disasters. The penalties include fines up to \$1,700 (6,000 Egyptian pounds) and prison sentences up to 3 years. There were no reports in which the law was applied in practice during the year.

In 1998 the People's Assembly approved a law that prohibits current or former members of the police from publishing work-related information without prior permission from the Interior Minister.

Various ministries legally are authorized to ban or confiscate books and other works of art upon obtaining a court order. The Islamic Research Center at Al-Azhar University has legal authority to censor, but not to confiscate, all publications dealing with the Koran and Islamic scriptural texts. In recent years the Center has passed judgment on the suitability of nonreligious books and artistic productions. In 1995 an administrative court ruled that the sole authority to prohibit publication or distribution of books and other works of art is vested in the Ministry of Culture. This decision invalidated a 1994 advisory

opinion by a judiciary council that had expanded Al-Azhar's censorship authority to include visual and audio artistic works. The same year, President Mubarak stated that the Government would not allow confiscation of books from the market without a court order, a position supported by the then-Mufti of the Republic, who is now the Grand Imam of Al-Azhar.

The Islamic Research Center at Al-Azhar University ruled during 1999 in favor of distribution of the book "My Father Adam: The Story of the Creation Between Legend and Reality," written by Abdel Sabour Shahine. An Islamist lawyer sued the Sheikh of Al-Azhar and several other senior Islamic figures in an effort to block publication of the book; a court rejected the suit on February 28. The plaintiff's appeal of the decision was pending at year's end.

The Islamic Research Center also issued a statement on May 17 denouncing the novel "A Banquet for Seaweed," by Syrian author Haidar Haidar, for insulting religious values. The novel, originally published in 1983, was reissued by the Ministry of Culture as part of a series on Arabic literature. Al-Shaab newspaper (of the pro-Islamist Socialist Labor Party) declared the book blasphemous for ridiculing Islam, and initiated a campaign against the book and against the Minister of Culture for reprinting it. Student demonstrations against the book at Al-Azhar University on May 8 turned violent, leading to the arrest of 75 students (see Sections 1.d. and 3). The Minister of Culture initially defended his decision and later relented and agreed to recall the book, but by then copies reportedly had sold out.

There were no court-ordered confiscations of books during the year. During the year, one author was tried and convicted for his writings. A State Security misdemeanor court sentenced author Salaheddine Mohsen to a 6-month suspended sentence in July for "insulting heavenly religions" in his book "The Shivering Light." At the time of his arrest, police confiscated approximately 100 copies of Mohsen's books, which he had published himself. On December 23, Mohsen was arrested at Cairo airport for attempting to leave the country. Upon the appeal of the State Security Prosecutor, who claimed that the sentence was too lenient, the Government ordered that Mohsen be retried. The retrial was pending at year's end. An appeal to the Court of Cassation by author Ala'a Hamed still was pending at year's end. Hamed previously was convicted in 1998 for the alleged pornographic content of his book "The Bed."

The Ministry of Interior regularly confiscates leaflets and other works by Muslim fundamentalists and other critics of the State. During the year, hundreds of suspected members of the illegal Muslim Brotherhood were arrested (see Sections 1.d. and 3). In many cases the press reported that police confiscated written materials such as leaflets during the arrests. On November 19, 15 persons were convicted of offenses related to membership in the Muslim Brotherhood, including possession of leaflets and other written materials related to the organization, and were given sentences ranging from 3 to 5 years in prison.

The Ministry of Interior also has the authority, which it exercises sporadically, to stop specific issues of foreign-published newspapers from entering the country on the grounds of protecting public order (also see Section 1.f.). The Ministry of Defense may ban works about sensitive security issues. The Council of Ministers may order the banning of works that it deems offensive to public morals, detrimental to religion, or likely to cause a breach of the peace.

The Ministry of Information owns and operates all domestic television and radio stations. The Government refuses to license private broadcast stations or to privatize the State's broadcast media. In addition to public television, the Government also offers several pay-for-view television channels. Government control and censorship of the broadcast media is significant.

Plays and films must pass Ministry of Culture censorship tests as scripts and as final productions. However, many plays and films that are highly critical of the Government and its policies are not censored. The Ministry of Culture also censors foreign films that are to be shown in theaters, but it is more lenient when the same films are released in videocassette format. Government censors ensure that foreign films made in Egypt portray the country in a favorable light. Censors review scripts before filming, are present during filming, and have the right to review the film before it is sent out of the country. An appeals court had not yet reviewed the case against the film "Birds of Darkness" by year's end. The plaintiffs charge that it is insulting to lawyers. Two related cases against the movie were dropped in 1997.

Moderate Muslims and secularist writers still are subject to legal action by Islamic extremists. Cairo University professor Nasr Abu Zeid and his wife continue to live abroad following the 1996 Court of Cassation ruling that affirmed lower court judgments that Abu Zeid is an apostate because of his controversial interpretation of Koranic teachings. In August the Supreme Constitutional Court rejected Abu Zeid's contestation of the constitutionality of the 1996 ruling.

The Government does not restrict directly academic freedom at universities. However, some university professors claim that the Government tightened its control over universities in 1994 through a law authorizing university presidents to appoint the deans of the various faculties. Under the previous law, faculty deans were elected by their peers. The Government has justified the measure as a means to combat Islamist influence on campus. The Government also occasionally bans books for use on campuses.

b. Freedom of Peaceful Assembly and Association

The Government significantly restricts freedom of assembly. Under a 1923 law, citizens must obtain approval from the Ministry of Interior before holding public meetings, rallies, and protest marches. The Interior Ministry selectively obstructs meetings scheduled to be held on private property and university campuses (also see Section 4). In January security officials prohibited the Group for Democratic Development from conducting a planned seminar on Islamic groups. In October the Government permitted the Cairo Institute for Human Rights Studies to hold a conference on the subject of human rights in the Arab world, which the Government had prohibited in 1999.

The Government significantly restricts freedom of association. In June the Supreme Constitutional Court overturned on procedural grounds Law 153 pertaining to the formation, function, and funding of non-governmental organizations (NGO's) and private foundations, which had been passed by the People's Assembly in June 1999. The previous law governing NGO's, Law 32, was reinstated until a new law could be passed, which had not happened by year's end. Law 153 and the subsequent implementing regulations were controversial, and had drawn mixed reactions from local and international NGO's and activists, some of whom charged that the law and regulations placed unduly burdensome restrictions on NGO's. While many NGO's were registered under Law 153, its overturn and the reinstatement of Law 32 left a number of NGO's that had not yet registered under either Law 153 or Law 32 in an unsettled status regarding registration. (Those that succeeded in registering under Law 153 still were considered registered after the law was overturned.) Three human rights organizations were registered as NGO's during the year: The Center for Human Rights Legal Assistance, the Center for Human Rights Studies and Information, and the Arab Organization for Human Rights. The Arab Organization for Human Rights had sought licensing since 1985. Several other human rights organizations that applied for registration, including the Egyptian Organization for Human Rights, the Human Rights Center for the Assistance of Prisoners, and the Cairo Institute for Human Rights Studies, were not registered by year's end. The EOHR sued to force the Ministry of Insurance and Social Affairs to register the organization, because the Ministry had not replied to EOHR's application within limits mandated under both Law 32 and Law 153. There was no decision on the case by year's end. In September the security services barred Mamdouh Nakhla, a Coptic Orthodox lawyer and human rights activist, from membership on the board of the Youssef El-Rami Charity Society, for "security reasons." Nakhla filed a lawsuit against the Ministers of Interior and Social affairs; no court date had been set by year's end.

Under 1993 legislation governing professional syndicates, at least 50 percent of the general membership of an association must elect the governing board. Failing a quorum, a second election must be held in which at least 30 percent of the membership votes for the board. If such a quorum is unattainable, the judiciary may appoint a caretaker board until new elections can be set. The law was adopted to prevent well-organized minorities, specifically Islamists, from capturing or retaining the leadership of professional syndicates. Members of these syndicates have reported that Islamists have used irregular electoral techniques such as physically blocking polling places and limiting or changing the location of polling sites.

On June 28, the Government postponed nationwide elections for the Lawyers' Syndicate that had been scheduled for July 1 on the grounds that syndicate offices were inadequate to allow voting by the syndicate's more than 85,000 members. Local observers believe the elections were postponed to prevent victories by Islamists and other oppositionists, as had occurred in

previous syndicate elections. In October 1999, the Court of Cassation upheld an earlier court decision to lift the Government sequestration of the Syndicate and to allow elections. Several Administrative Court rulings during the year supported the Syndicate's right to hold elections in its offices, but the elections had not taken place by year's end.

c. Freedom of Religion

The Constitution provides for freedom of belief and the practice of religious rites; however, the Government places restrictions on this right. Most Egyptians are Sunni Muslims. There is a small number of Shi'a Muslims. Approximately 10 percent of the population, or 6 million of 64 million, are Christians, the majority of whom belong to the Coptic Orthodox Church. There are other small Christian denominations, as well as a Jewish community that numbers approximately 200 persons.

Under the Constitution, Islam is the official state religion and primary source of legislation. Accordingly, religious practices that conflict with Shari'a (Islamic law) are prohibited. However, in Egypt the practice of Christianity or Judaism does not conflict with Shari'a and, for the most part, members of the non-Muslim minority worship without harassment and maintain links with coreligionists abroad.

All mosques must be licensed, and the Government is engaged in an effort to control them legally. The Government appoints and pays the salaries of the imams who lead prayers in mosques, proposes themes for them, and monitors their sermons. In December the Minister of Awqaf announced that the Government now controls 52,000 mosques and 11,000 mosques located in private buildings. (There are over 70,000 mosques in the country.) In an effort to combat extremists, the Government has announced its intention to bring all unauthorized mosques under its control by 2002.

Neither the Constitution nor the Civil and Penal Codes prohibit proselytizing or conversion. However, during the past 2 decades, several dozen Christians who were accused of proselytizing or who had converted from Islam to Christianity have been harassed by police or arrested on charges of violating Article 98(F) of the Penal Code, which prohibits citizens from ridiculing or insulting heavenly religions or inciting sectarian strife. No such incidents occurred during the year; however, in June Aziz Tawfik, a Christian who allegedly was engaged in proselytizing activities, was detained briefly by State Security forces. He reportedly was mistreated during his detention. He was released the same day and reportedly has not been harassed since.

There are no restrictions on the conversion of non-Muslims to Islam. However, in cases involving conversion from Islam to Christianity, authorities have charged several converts with violating laws prohibiting the falsification of documents. In such instances, converts, who fear government harassment if they officially register the change from Islam to Christianity, have altered their identification cards and other official documents themselves to reflect their new religious affiliation. There were no reports of such arrests or harassment during the year.

In 1997 human rights activist Mamdouh Naklah filed suit seeking removal of the religious affiliation category from government identification cards. Naklah challenged the constitutionality of a 1994 decree by the Minister of Interior governing the issuance of new identification cards. The court referred the case to the State Commissioner's Office, which in May issued an opinion noting that the legal challenge had not been filed within 60 days of the decree's issuance, as required by law. However, the advisory opinions of the State Commissioner's Office are not binding. The court now is expected to try the case, although no date has been set.

An 1856 Ottoman decree still in force requires non-Muslims to obtain what is now a presidential decree to build a place of worship. In addition, Interior Ministry regulations issued in 1934 specify a set of 10 conditions that the Government must consider prior to issuance of a presidential decree permitting construction of a church. These conditions include the location of the proposed site, the religious composition of the surrounding community, and the proximity of other churches. The Ottoman decree also requires the President to approve permits for the repair of church facilities.

In response to strong criticism of the Ottoman decree, President Mubarak took several steps to facilitate church repairs. In December 1999, President Mubarak issued a decree making the repair of all places of worship subject to a 1976 civil construction code. The decree is significant symbolically because it places churches and mosques on equal footing before the law. The practical impact of the decree has been to facilitate significantly church repairs. During the year, the Government issued 29 permits for church-related construction, including 4 permits for the construction of new churches, 19 permits for churches previously constructed without authorization, and 6 permits for the demolition and reconstruction of existing churches. In addition, the Government reported that local authorities issued more than 350 permits for church-related repair during the year.

However, the approval process for church construction is time-consuming and insufficiently responsive to the wishes of the Christian community. Although President Mubarak reportedly has approved all requests for permits presented to him, Christians maintain that the Interior Ministry delays--in some instances indefinitely--submission to the President of their requests. They also maintain that security forces have blocked them from utilizing permits that have been issued. For example, a permit issued in 1993 to repair structural damage to a 110-year-old church in a village next to Luxor remains unenforced due to "security reasons." During the summer, newspapers published a May 22 letter from the secretary general of Assiyut governorate to the head of the Assiyut counsel directing that all church repair requests be screened by security before approved.

In January 1996, human rights activist Mamdouh Naklah filed suit challenging the constitutionality of the Ottoman decree. In December 1998, an administrative court referred Naklah's case to the State Commissioner's Office. In September the Office issued an opinion that the decree is unconstitutional, but that Naklah had no standing to file the suit. The opinion is not binding; the court had not ruled on the case by year's end.

The Minister of Awqaf, Hamdy Zaqzouq, who is responsible for administering religious trusts, established in 1996 a committee to address a dispute with the Coptic Orthodox Church that originated in 1952. At that time, the Government seized approximately 1,500 acres of land from the Church and transferred title to the Ministry of Awqaf. Based on the committee's recommendations, more than 800 acres have been returned to the Church. The committee continues to review claims to the remaining disputed property.

The Constitution requires schools to offer religious instruction. Public and private schools provide religious instruction according to the faith of the student.

The Government occasionally prosecutes members of religious groups whose practices deviate from mainstream Islamic beliefs and whose activities are believed to jeopardize communal harmony. For example, on November 11, 1999, the State Security Prosecutor arrested 50 persons in Cairo suspected of heresy against Islam. On November 15, 1999, 30 of the detainees were released and the remaining 20 were charged with degrading Islam, inciting strife, and meeting illegally. The lead defendant, a woman named Manal Wahid Mana'a, was accused of attempting to establish a new Islamic offshoot. On September 5, a State Security Emergency Court in Boulaq sentenced 16 of the defendants, including Mana'a to 5 years' hard labor, 3 other defendants to 3 years' hard labor, 7 to 1 year of hard labor, 2 to 6 months in prison, and 2 to a fine of \$375 (1000 Egyptian pounds). One of the defendants died in prison, reportedly from ill health, during the investigation (see Sections 1.e. and 1.a.).

On September 15, a State Security Emergency Court handed down a ruling in the case of 10 defendants, 4 of whom were women, accused of propagating extremist ideas in Giza and Alexandria from 1990 to 1999. The court sentenced two defendants to 15 years' hard labor, one to 3 years' hard labor, two to 3 years in prison, and five (including the four women) to 1 year in prison (see Section 1.e.).

In August 1999, the public prosecutor reopened and expanded an investigation of police torture of mostly Christian detainees that took place during the police investigation in August and September 1998 of the murder of Samir Aweda Hakim and Karam Tamer Arsal in the largely Coptic village of Al-Kush in Sohag governorate. By October approximately 300 of 1,000 residents involved in the incident had been reinterviewed. It remains unclear whether religion was a factor in the actions of

the police officers. Some human rights groups outside Egypt believe that religion was a factor in the Al-Kush murder investigation, but most human rights and Christian activists in Egypt do not. Police abuse of detainees is a widespread practice that occurs regardless of a detainee's religious beliefs (see Section 1.c.).

On June 5, a criminal court in Sohag city convicted Shayboub William Aarsal of the murder of Hakim and Aarsal. The court sentenced Shayboub to 15 years in prison at hard labor. An appeal was pending at year's end. The Christian community of Al-Kush believes that Shayboub, a Christian resident of Al-Kush, was accused and convicted of the crime because of his religion. The public prosecution in Sohag has taken no action on charges of witness tampering in Shayboub's trial that were raised in 1998 against Bishop Wisa and Arch-Priest Antonious.

On July 16, the Dar Al-Salaam court sentenced a Christian, Suryal Gayed Ishak, to 3 years' hard labor for "insulting Islam" during a public dispute. Ishak's attorney appealed the conviction, claiming that Ishak was accused falsely of instigating the new year's violence in Al-Kush (see Section 5). The appeal was scheduled to be heard in January 2001.

Some Christians allege that the Government is lax in protecting Christian lives and property against extremists (see Section 5).

In September the Maadi Community Church, an independent interdenominational Protestant church, obtained recognition from the Government, which allows the Church to buy property and hold services.

In 1960 President Gamal Abdel Nasser issued a decree (Law 263 for 1960) banning Baha'i institutions and community activities. All Baha'i community properties, including Baha'i centers, libraries, and cemeteries, were confiscated. This ban has not been rescinded.

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

Citizens and foreigners are free to travel within the country except in certain military areas. Males who have not completed compulsory military service may not travel abroad or emigrate, although this restriction may be deferred or bypassed. Unmarried women under the age of 21 must have permission from their fathers to obtain passports and travel; married women require the same permission from their husbands. Citizens who leave the country have the right to return.

The Constitution provides for the grant of asylum and/or refugee status in accordance with the 1951 Convention Relating to the Status of Refugees and its 1967 Protocol. There were no reports of the forced return of persons to a country where they feared persecution. Egypt grants first asylum for humanitarian reasons or in the event of internal turmoil in neighboring countries. The Government cooperates with the office of the U.N. High Commissioner for Refugees (UNHCR). Asylum seekers generally are screened by UNHCR representatives, who issue a refugee identification card if the Ministries of Interior and Foreign Affairs approve. While recognized refugees are permitted to reside in Egypt legally, they may not acquire citizenship except in rare cases. During the year, approximately 6,400 recognized refugees resided in the country, including more than 2,500 Somalis and 2,400 Sudanese. Although there is no pattern of abuse of refugees, during random security sweeps, the Government temporarily detained some refugees who were not carrying proper identification. Following intervention by the UNHCR, the refugees were released.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The ruling National Democratic Party (NDP) dominates the 454-seat People's Assembly, the Shura Council, local governments, the mass media, labor, and the large public sector, and controls the licensing of new political parties, newspapers, and private organizations to such an extent that, as a practical matter, citizens do not have a meaningful ability to change their government.

In September 1999 President Hosni Mubarak was elected unopposed to a fourth six-year term in a national referendum. According to official results he received 94 percent of the vote. The referendum followed the constitutionally mandated nomination by the People's Assembly. Under the Constitution, the electorate is not presented with a choice among competing presidential candidates.

During the year, Egypt held elections for the People's Assembly. Due to court-ordered supervision by the judiciary of the voting and counting, the process was significantly cleaner and more transparent than previous elections; however, there were a number of problems. The elections were held in stages between October 18 and November 15 in order to allow for supervision by a member of the judiciary at each polling place. Out of a total of 444 elected seats, the ruling NDP won 172 seats, independent candidates won 255 seats, and opposition parties won 17 seats. Elections for two seats in Alexandria still had not been held by year's end due to a court-imposed delay because of procedural irregularities. Many of the independents elected were former members of the NDP who rejoined the party after being elected, thus leaving the People's Assembly actual balance at 388 NDP members, 37 independents (17 of them affiliated with the outlawed Muslim Brotherhood), and 17 opposition party members. Seven of those elected were women and three were Christians. President Mubarak also appointed 10 members to the Assembly, of whom 4 were women and 4 Christians.

Despite the overall improvement in the electoral process, there still were problems affecting the elections' fairness, particularly in the period leading up to elections and outside some polling stations on election days. During the months preceding the elections, the Government arrested thousands of members of the Muslim Brotherhood on charges of belonging to an illegal organization. Most observers believe that the Government was seeking to undermine the Muslim Brotherhood's participation in the People's Assembly and professional syndicate elections through intimidation. In addition previous convictions on such charges legally precluded many potential candidates from running.

Violence among supporters of various candidates marred the elections at some polling places and resulted in the deaths of 9 persons. At a few locations, the security presence was so heavy as to inhibit voters' access to the polls. There were also reports of voter harassment by security forces in jurisdictions in which the Muslim Brotherhood was expected to do well. The EOHR conducted a small-scale monitoring effort, but there was no systematic, large-scale independent monitoring of the elections.

The People's Assembly debates Government proposals, and members exercise their authority to call cabinet ministers to explain policy. The executive initiates almost all legislation. Nevertheless, the Assembly maintains the authority to challenge or restrain the executive in the areas of economic and social policy, although it may not modify the budget except with the Government's approval. The Assembly exercises limited influence in the areas of security and foreign policy, and retains little oversight of the Interior Ministry's use of Emergency Law powers. Many executive branch initiatives and policies are carried out by regulation through ministerial decree without legislative oversight. The military budget is prepared by the executive and not debated publicly. Roll-call votes in the Assembly are rare. Votes generally are reported in aggregate terms of yeas and nays, and thus constituents have no independent method of checking a member's voting record.

The Shura Council, the upper chamber of Parliament, has 264 members. Two-thirds of the members are elected popularly and the President appoints one-third. One half of the Shura seats are up for reelection or reappointment every 3 years. In 1998 the NDP won all 88 seats up for election. One Coptic Christian, from Alexandria, won a seat. The President made 47 appointments (including an additional three over the 44 open seats to replace deceased members). Those appointed included nine women, eight Coptic Christians, and two members of opposition parties.

There are 13 recognized opposition parties. The law empowers the Government to bring felony charges against those who form a party without a license. New parties must be approved by the Political Parties Committee, a semiofficial body that includes a substantial majority of members from the ruling NDP and some members from among the independent and opposition parties. Decisions of the Parties Committee may be appealed to the civil courts. If a court overturns a denial, the party is not registered automatically. Both the Committee and the People's Assembly sometimes ignore court decisions.

During the year the Committee approved one party (the Nasserist "National Accord" party) and rejected the applications of two others. These rejected parties filed an appeal of the Committee's decision. Six other appeals were pending before the Administrative Court at year's end.

The Political Parties Committee also may withdraw recognition from existing political parties. On May 20, the Committee withdrew recognition from the Socialist Labor Party and suspended publication of the party newspaper Al-Shaab. The Committee justified its decision by citing the emergence of several splinter factions within the party. Members of the Socialist Labor Party charged that the emergence of such factions was a Government-backed conspiracy to punish the party and newspaper for having instigated student demonstrations that turned violent at Al-Azhar University in early May (see Section 2.a.).

The Muslim Brotherhood remains an illegal organization and may not be recognized as a political party under current laws, which prohibit political parties based on religion. Muslim Brothers are known publicly and openly speak their views, although they do not explicitly identify themselves as members of the organization. They remain subject to government pressure (see Section 1.d.). Seventeen independent candidates backed by the Muslim Brotherhood were elected to the People's Assembly in the fall parliamentary elections.

Women and minorities are underrepresented in Government and politics. The Constitution reserves 10 Assembly seats for presidential appointees, and during the year President Mubarak included four Christians and four women among his appointees. In addition to the appointments, seven women and three Copts were elected in the fall. The ruling NDP nominated three Coptic candidates in the parliamentary elections. Two women and 2 Copts serve among the 32 ministers in the Cabinet.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Human rights organizations continue to face difficulties registering as legal organizations. In June the Supreme Constitutional Court overturned on procedural grounds Law 153 pertaining to the formation, function, and funding of non-governmental organizations (NGO's) and private foundations, which had been passed by the People's Assembly in June 1999. The previous law governing NGO's, Law 32, was reinstated until a new law could be passed, which had not happened by year's end. Law 153 and the subsequent implementing regulations, were considered controversial, and had drawn mixed reactions from local NGO's and international activists, some of whom charged that the law and regulations placed unduly burdensome restrictions on NGO operations.

While many NGO's were registered under Law 153, its overturn and the reinstatement of Law 32 left a number of NGO's that had not yet registered under either Law 153 or Law 32 in an unsettled status regarding registration (see Section 2.b.). Three human rights organizations were registered as NGO's during the year: The Center for Human Rights Legal Assistance, the Center for Human Rights Studies and Information, and the Arab Organization for Human Rights. Several other human rights organizations that applied for registration, including the Egyptian Organization for Human Rights, the Human Rights Center for the Assistance of Prisoners, and the Cairo Institute for Human Rights Studies, were not registered by year's end (see Section 2.b.).

Despite years of nonrecognition, the EOHR and other groups sometimes obtain the cooperation of Government officials. The Government allows EOHR field workers to visit prisons in their capacity as legal counsel, to call on some Government officials, and to receive funding from foreign human rights organizations. However, many local and international human rights activists have concluded that government restrictions on NGO activities, including limits on organizations' ability to accept funding, have inhibited significantly reporting on human rights abuses.

In May the Public Prosecutor dropped the Government's case against EOHR secretary-general Hafez Abu Se'da. Abu Se'da and EOHR attorney Mustafa Zidane had been charged in December 1998 with dissemination of false information or inflammatory propaganda that harms public security or public interests and with accepting foreign funds with the intent to harm national interests. The charges against Abu Se'da were dropped in February, and he was instead charged with violating a 1992 military decree prohibiting any Egyptian individual or organization from accepting foreign funds without Government permission, before the case ultimately was dropped altogether in May. The charges against Zidane also was dropped. The charges were based on an EOHR report that was critical of police conduct during a 1998 murder investigation in Sohag (See sections 2.a. and 2.c.).

The case of Saad Eddin Ibrahim, director of the Ibn Khaldoun Center for Development Studies, who was put on trial beginning on November 18 for charges that included disseminating abroad false information about the country and accepting foreign funds without government permission, also had a chilling effect on the work of human rights organizations, which exist largely on foreign funding (see Sections 1.e. and 2.a.)

In October the Government permitted the Cairo Institute for Human Rights to hold a conference on the subject of human rights in the Arab world, which the Government had prohibited in 1999. In January security officials prohibited the Group for Democratic Development from conducting planned seminar on Islamic groups.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution provides for equality of the sexes and equal treatment of non-Muslims; however, aspects of the law and many traditional practices discriminate against women and Christians.

Women

Domestic violence against women is a significant problem and is reflected in press accounts of specific incidents. According to a national study conducted in 1995 as part of a comprehensive demographic and health survey, one of every three women who have ever been married has been beaten at least once during marriage. Among those who have been beaten, less than half have ever sought help. Smaller, independent studies confirm that wife beating is common. In general, neighbors and extended family members intervene to limit incidents of domestic violence. Due to the value attached to privacy in the country's traditional society, abuse within the family rarely is discussed publicly. Spousal abuse is grounds for a divorce, but the law requires the plaintiff to produce eyewitnesses, a difficult condition to meet. Several NGO's offer counseling, legal aid, and other services to women who are victims of domestic violence. These activists believe that in general the police and the judiciary consider the "integrity of the family" more important than the well being of the woman. The Ministry of Insurance and Social Affairs operates more than 150 family counseling bureaus nationwide, which provide legal and medical services.

The Government prosecutes rapists, and punishment for rape ranges from 3 years in prison to life imprisonment at hard labor. If a rapist is convicted of abducting his victim, he is subject to execution; however, there were no reports of the execution of rapists. In 1999 the Government abolished an article of the Penal Code that permitted a rapist to be absolved of criminal charges if he married his victim. However, marital rape is not illegal. Although reliable statistics regarding rape are not available, activists believe that it is not uncommon, despite strong social disapproval. When "honor killings" (a man murdering a female for her perceived lack of chastity) occur, perpetrators generally receive lighter punishments than those convicted in other cases of murder. There are no reliable statistics regarding the extent of honor killings.

Prostitution and sex tourism are illegal, but known to occur.

The law provides for equality of the sexes; however, aspects of the law and many traditional practices discriminate against women. By law, unmarried women under the age of 21 must have permission from their fathers to obtain passports and to travel; married women of any age require the same permission from their husbands (see Section 2.d.). Only males may confer citizenship. In rare cases, this means that children who are born to Egyptian mothers and stateless fathers are

themselves stateless. A woman's testimony is equal to that of a man's in the courts. There is no legal prohibition against a woman serving as a judge, although in practice no women serve as judges. The Court of Cassation postponed to January 2001 the cases of two attorneys, Fatma Lashin and Amany Talaat, who are challenging the Government's refusal to appoint them as Public Prosecutors. (To become a judge, one must first serve as a Public Prosecutor.)

Laws affecting marriage and personal status generally correspond to an individual's religion. In January the Parliament passed a new Personal Status Law that made it easier for a Muslim woman to obtain a divorce without her husband's consent, provided that she is willing to forego alimony and the return of her dowry. (The Coptic Orthodox Church does not permit divorce.) However, an earlier provision of the draft law that would have made it easier for a woman to travel without her husband's consent, was rejected.

Under Islamic law, non-Muslim males must convert to Islam to marry Muslim women, but non-Muslim women need not convert to marry Muslim men. Muslim female heirs receive half the amount of a male heir's inheritance, while Christian widows of Muslims have no inheritance rights. A sole female heir receives half her parents' estate; the balance goes to designated male relatives. A sole male heir inherits all his parents' property. Male Muslim heirs face strong social pressure to provide for all family members who require assistance; however, this assistance is not always provided.

Women have employment opportunities in government, medicine, law, academia, the arts, and business. Labor laws provide for equal rates of pay for equal work for men and women in the public sector. According to Government figures, women constitute 17 percent of private business owners and occupy 25 percent of the managerial positions in the four major national banks. Social pressure against women pursuing a career is strong, and women's rights advocates say that Islamist influence inhibits further gains. Women's rights advocates also point to other discriminatory traditional or cultural attitudes and practices, such as female genital mutilation and the traditional male relative's role in enforcing chastity and chaste sexual conduct.

A number of active women's rights groups work in diverse areas, including reforming family law, educating women on their legal rights, promoting literacy, and combating FGM.

Children

The Government remains committed to the protection of children's welfare and attempts to do so within the limits of its budgetary resources. Many of the resources for children's welfare are provided by international donors, especially in the field of child immunization. Child labor is widespread, despite the Government's commitment to eradicate it (see Section 6.d.). UNICEF has reported on the practice of poor rural families making arrangements for a daughter to be employed as a domestic servant in the home of wealthy citizens (see Sections 6.c.).

The Government provides public education, which is compulsory for the first 9 academic years (typically until the age of 15). The Government treats boys and girls equally at all levels of education.

The Government enacted a Child Law in 1996. The law provides for privileges, protection, and care for children in general. Six of the law's 144 articles set rules protective of working children (see Section 6.d.). Other provisions include: A requirement that employers set up or contract with a child care center if they employ more than 100 women; the right of rehabilitation for disabled children; a prohibition on sentencing defendants between the ages of 16 and 18 to capital punishment, hard labor for life, or temporary hard labor; and a prohibition on placing defendants under the age of 15 in preventive custody (although the prosecution may order that they be lodged in an "observation house" and be summoned upon request).

Female genital mutilation, which is widely condemned by international health experts as damaging to both physical and psychological health, is common despite the Government's commitment to eradicating the practice and NGO efforts to combat it. Traditional and family pressures remain strong; a study conducted during the year estimates the percentage of women who have ever been married who have undergone FGM at 97 percent. The survey showed that attitudes may be

changing slowly; over a 5-year period, the incidence of FGM among the daughters (from ages 11 to 19) of women surveyed fell from 83 to 78 percent. FGM generally is performed on girls between the ages of 7 and 12, with equal prevalence among Muslims and Christians.

In 1997 the Court of Cassation upheld the legality of a 1996 decree banning FGM that was issued by the Minister of Health and Population Planning. In addition to attempting to enforce the decree, the Government supports a range of efforts to educate the public. A discussion of FGM and its dangers has been added to the curriculum of the school system. The Government broadcasts television programs criticizing the practice. Government ministers speak out against the practice, and senior religious leaders also support efforts to stop it. The Sheikh of Al-Azhar, the most senior Islamic figure in the country, and the leader of the Coptic Orthodox community, Pope Shenouda, have stated repeatedly that FGM is not required by religious doctrine. However, illiteracy impedes some women from distinguishing between the deep-rooted tradition of FGM and religious practices. Moreover, many citizens believe that FGM is an important part of maintaining female chastity, which is a part of religious tradition, and the practice is supported by some Muslim religious authorities and Islamist political activists. A number of NGO's actively work to educate the public about the health hazards of the practice.

People With Disabilities

There are no laws specifically prohibiting discrimination against the disabled, but the Government makes serious efforts to address their rights. It works closely with U.N. agencies and other international aid donors to design job-training programs for the disabled. The Government also seeks to increase the public's awareness of the capabilities of the disabled in television programming, the print media, and in educational material in public schools. There are approximately 5.7 million disabled persons, of whom 1.5 million are disabled severely.

By law, all businesses must designate 5 percent of their jobs for the disabled, who are exempt from normal literacy requirements. Although there is no legislation mandating access to public accommodations and transportation, the disabled may ride Government-owned mass transit buses free of charge, are given priority in obtaining telephones, and receive reductions on customs duties for private vehicles. A number of NGO's are active in efforts to train and assist the disabled.

Religious Minorities

The Constitution provides for equal public rights and duties without discrimination due to religion or creed. For the most part, the Government upholds these constitutional protections. However, discrimination against Christians exists. There are no Christians serving as governors, university presidents, and deans. There are few Christians in the upper ranks of the security services and armed forces. Although there was improvement in a few areas such as coverage of Christian subjects in the mass media, discriminatory government practices include: Suspected statistical underrepresentation of the size of the Christian population; bias against Christianity and Coptic history in the educational curricula; failure to admit Christians into public university training programs for Arabic language teachers (because the curriculum involves study of the Koran); discrimination against Christians in the public sector; and discrimination against Christians in staff appointments to public universities.

The approximately 6 million Coptic Christians have been the objects of occasional violent assaults by the Islamic Group and other terrorists. Some Christians have alleged that the Government is lax in protecting Christian lives and property (see Section 2.c.). However, there were no reports of terrorist attacks against Christians during the year. In incidents unrelated to terrorism, 1 Christian was killed and 10 were wounded in four assaults linked to Muslim extremists. Madgy Ayyad Mas'oud was killed on July 26 in a village in Giza by unidentified gunmen, reportedly because he built a church (with official approval) to which extremists objected. Two men were arrested on July 31 and charged with premeditated murder in connection with the case; the trial had not begun by year's end. On December 11, Father Hezkiyal Ghebriyal, a 75-year-old Coptic Orthodox priest, was stabbed and seriously wounded in the village of Bardis, near Sohag. Police arrested the suspected attacker, who remained in prison at year's end, pending an ongoing investigation. Several other Christians were wounded in sectarian disputes in other provinces.

On April 15, the Tanta Criminal Court sentenced to 3 years in prison the assailant who stabbed a Christian priest in Mahalla in August 1999. On June 22, a State Security Emergency court sentenced to 5 years' imprisonment with hard labor four members of a terrorist group from the upper (southern) Egyptian city of Dairout who were accused of murder and attempted murder of policemen and Christians in the early 1990's. As of the end of the year, the Court of Cassation had not yet set a date to hear an appeal by the Public Prosecutor seeking a heavier sentence in the case of Ahmad and Ibrahim Nasir, who were sentenced to 7 years in prison for the September 1999 murder of a monk in Assiut.

A trade dispute between a Christian clothing merchant and a Muslim customer on December 31, 1999, in the village of Al-Kush in Sohag governorate, escalated into violent exchanges between Muslims and Christians in the area, resulting in the deaths of 21 Christians and 1 Muslim on January 2, 2000. The violence also resulted in the injury of 39 persons in Al-Kush and 5 persons in the neighboring municipality of Dar Al-Salaam. Approximately 200 businesses and homes in the area were damaged. Following the incident, President Mubarak sent the Minister of Local Administration to Al-Kush as his emissary. The Minister of Housing and the Public Prosecutor also visited Al-Kush to investigate. The Government subsequently provided \$800 (3000 Egyptian pounds) to each of the families of those who were killed, and \$130 (500 Egyptian pounds) to each person who was injured. The Government relocated and rebuilt 65 kiosks damaged in the riots; the placement of the kiosks had been a subject of longstanding dispute between Christian and Muslim merchants. The Christian community estimates that Christian residents and merchants lost \$962,000 (3,609,400 Egyptian pounds) worth of merchandise and personal property during the looting. The Ministry of Social Affairs thus far has disbursed \$14,000 (52,900 Egyptian pounds) in compensation. The Coptic Orthodox Church has provided \$175,000 (655,450 Egyptian pounds) in compensation. Several individuals and organizations have provided donations to the Christian community in Al-Kush.

Coptic Orthodox Pope Shenouda stated publicly that negligence on the part of the police and local leaders led to an increase in the number of victims and an escalation of the violence. Although rumors reportedly played a significant role in exacerbating the violence, no incitement charges were brought. The Government did not investigate police conduct; however, the director of State Security for Sohag governorate, Sa'id Abu Al-Ma'aly, was removed from his position in March.

On March 11, the Public Prosecutor announced the indictment of 135 persons for involvement in the sectarian violence in Al-Kush and Dar Al-Salaam, on charges ranging from unlawful assembly to murder. Charges initially raised against a local priest were dropped. On September 5, the Sohag criminal court handed down the verdicts in the cases of 39 persons charged with crimes (including arson and theft but not murder) committed in Dar Al-Salaam. Among 21 persons convicted, 4 were sentenced to 10 years in prison, 4 to 2 years, 12 to 1 year, and 1 to 6 months; the remaining 19 defendants were acquitted. On June 4, the Sohag criminal court began hearing the case of 96 defendants charged with crimes (including murder) committed in Al-Kush. Observers criticized the decision by the trial judge on December 7 to release on personal recognizance for the Ramadan and Christmas holidays 89 defendants (51 Muslims and 38 Christians), who faced charges from inciting violence to murder. The trial was ongoing at year's end.

There were reports of forced conversions of Coptic girls to Islam. Reports of such cases are disputed and often include inflammatory allegations and categorical denials of kidnapping and rape. Observers, including human rights groups, find it extremely difficult to determine whether compulsion was used, as most cases involve a Coptic girl who converts to Islam when she marries a Muslim boy. According to the Government, in such cases the girl must meet with her family, with her priest, and with the head of her church before she is allowed to convert. However, there are credible reports of Government harassment of Christian families that attempt to regain custody of their daughters, and of the failure of the authorities to uphold the law (which states that a marriage of a girl under the age of 16 is prohibited, and between the ages of 16 and 21 is illegal, without the approval and presence of her guardian) in cases of marriage between an underage Christian girl and a Muslim boy.

There is no legal requirement for a Christian girl or woman to convert to Islam in order to marry a Muslim. However, if a Christian woman marries a Muslim man the Coptic Orthodox Church excommunicates her. Ignorance of the law and societal pressure, including the centrality of marriage to a woman's identity, often affect her decision. Family conflict and financial pressure also are cited as factors. In addition conversion is a means of circumventing the legal prohibition on marriage

between the ages of 16 and 21 without the approval and presence of a girl's guardian. Most Christian families would object to a daughter's wish to marry a Muslim. If a Christian girl converts to Islam, her family loses guardianship, which transfers to a Muslim custodian, who is likely to grant approval. The law is silent on the matter of the acceptable age of conversion.

Anti-Semitism is found in both the Government press and in the press of the opposition parties. The Government has criticized anti-Semitism and advised journalists and cartoonists to avoid anti-Semitism. There have been no violent anti-Semitic incidents in recent years directed at the tiny Jewish community.

Section 6 Worker Rights

a. The Right of Association

Workers may join trade unions but are not required to do so. A union local, or workers' committee, may be formed if 50 employees express a desire to organize. Most union members, about 27 per cent of the labor force, are employed by state-owned enterprises. The law stipulates that "high administrative" officials in Government and the public sector may not join unions.

There are 23 trade unions, all required to belong to the Egyptian Trade Union Federation (ETUF), the sole legally recognized labor federation. The International Labor Organization's Committee of Experts repeatedly has emphasized that a law that requires all trade unions to belong to a single federation infringes on freedom of association. The Government has shown no sign that it intends to accept the establishment of more than one federation. The ETUF leadership asserts that it actively promotes worker interests and that there is no need for another federation. ETUF officials have close relations with the NDP, and some are members of the People's Assembly or the Shura Council. They speak vigorously on behalf of worker concerns, but public confrontations between the ETUF and the Government are rare. Disputes more often are resolved by consensus in private.

The labor laws do not provide adequately for the rights to strike and to engage in collective bargaining. Strikers may face prison sentences of up to 2 years. Although the right to strike is not provided, strikes occur. The Government considers strikes a form of public disturbance and therefore illegal. According to a press report in March, the Minister of Military Production referred five striking workers from a Helwan arms factory to military prosecution.

There were 17 strikes during the year. Strikes mainly were over issues of wage cuts, dismissals, and anticipated privatization. Most of the strikes took place in Alexandria, Cairo, and the Delta (northern Egypt), the country's industrial centers. Most of the strikes occurred in public sector companies and lasted for 1 day. Most strikes involved hundreds of workers, and in one instance more than a thousand workers were involved. Bonuses and incentives tied to the previous year's production typically are disbursed in January, and failure to disburse the bonuses often leads to a strike. ETUF or government officials successfully mediated most of the strikes.

Some unions within the ETUF are affiliated with international trade union organizations. Others are in the process of becoming affiliated.

b. The Right to Organize and Bargain Collectively

Under the law, unions may negotiate work contracts with public sector enterprises if the latter agree to such negotiations, but unions otherwise lack collective bargaining power in the state sector. The International Labor Organization (ILO) for years has claimed that the Labor Code undermines the principle of voluntary bargaining by providing that any clause of a collective agreement that is liable to impair the economic interest of the country is null and void. Under current circumstances, collective bargaining does not exist in any meaningful sense because the Government sets wages, benefits, and job classifications by law.

Firms in the private sector generally do not adhere to such Government-mandated standards. Although they are required to observe some Government practices, such as the minimum wage, social security insurance, and official holidays, firms often do not adhere to Government practice in nonbinding matters, including award of the annual Labor Day bonus. There are no legal obstacles to establishing private sector unions, although such unions are not common.

Labor law and practice are the same in Egypt's six export processing zones (EPZ's) as in the rest of the country.

c. Prohibition of Forced or Compulsory Labor

The Constitution prohibits forced labor; however, the Criminal Code authorizes sentences of hard labor for some crimes. Although the law does not prohibit specifically forced and bonded labor by children, such practices are not known to occur (see Section 6.d.). Domestic and foreign workers generally are not subject to coerced or bonded labor, although UNICEF has reported on the practice of poor rural families making arrangements for a daughter to be employed as a domestic servant in the home of wealthy citizens (see Sections 6.d.).

d. Status of Child Labor Practices and Minimum Age for Employment

Under the 1996 Child Law (see Section 5), the minimum age for employment is 14 in nonagricultural work. The Labor Law of 1996 and associated ministerial decrees greatly limit the type and conditions of work that children below the age of 18 may perform legally. Provincial governors, with the approval of the Minister of Education, may authorize seasonal work for children between the ages of 12 and 14, provided that duties are not hazardous and do not interfere with schooling. Preemployment training for children under the age of 12 is prohibited. It is prohibited for children to work for more than 6 hours a day. One or more breaks totaling at least 1 hour must be included. Children may not work overtime, during their weekly day off, between 8 p.m. and 7 a.m., or for more than 4 hours continuously. Education is compulsory, free, and universal for the first 9 academic years (typically until the age of 15).

The Government takes seriously the problem of child labor, and took steps to improve the situation. For example, Prime Minister Atef Ebeid and First Lady Suzanne Mubarak are involved personally with the problems of working children through their leadership positions on the National Council for Children and Motherhood. The Government worked closely during the year with international organizations--in particular UNICEF and the International Labor Organization (ILO)--as well as international and domestic NGO's and labor unions to implement programs designed to address child labor and its root causes. However, in general the Government does not devote adequate resources to implement its child labor policies. Statistical information on the number of working children is difficult to obtain and often out of date. A comprehensive study prepared by the Government's statistical agency in 1988 indicated that 1,309,000 children between the ages of 6 and 14 were employed. In November 1999, the Minister of Social Affairs reportedly stated that 1 million children participate in agricultural labor, and NGO's estimate that up to 1.5 million children work. Government studies also indicate that the concentration of working children is higher in rural than urban areas. Nearly 78 percent of working children are in the agricultural sector. However, children also work as domestic servants, as apprentices in auto repair and craft shops, in heavier industries such as construction, in brickmaking and textiles, and as workers in tanneries and carpet-making factories. While local trade unions report that the Ministry of Labor adequately enforces the labor laws in state-owned enterprises, enforcement in the private sector, especially in the informal sector, is lax. Many of these children are abused, overworked, and exposed to potentially hazardous conditions by their employers, and the restrictions in the Child Law have not improved conditions due to lax enforcement on the part of the Government. There were only two reported cases during the year in which the Government enforced child labor laws. In September Ministry of Interior officials raided 16 electrical workshops in various Cairo neighborhoods and found 30 children between the ages of 6 and 12 working there. In another case, authorities found 4 children working in a Cairo restaurant that serves alcoholic beverages. Both cases were referred to the Prosecutor General's office. According to Article 74 of the Child Law of 1996, establishment owners are subject to fines of \$27 to \$133 (100 to 500 Egyptian pounds) for each illegal child worker; in the case of repeat offenders the fines are doubled. Investigations into the cases were ongoing at year's end.

Although the law does not prohibit specifically forced and bonded labor by children, UNICEF has reported on the practice of poor rural families making arrangements for a daughter to be employed as a domestic servant in the home of wealthy citizens (see Sections 6.c.).

e. Acceptable conditions of work

For Government and public sector employees, the minimum wage is approximately \$34 (about 128 Egyptian pounds) a month for a 6-day, 36-hour workweek, as compared to the same wages for a 42-hour workweek in 1999. The minimum wage, which is set by the Government and applied nationwide, is enforced effectively by the Ministry of Administrative Development. The minimum wage does not provide for a decent standard of living for a worker and family; however, base pay commonly is supplemented by a complex system of fringe benefits and bonuses that may double or triple a worker's take-home pay. The minimum wage also is binding legally on the private sector, and larger private companies generally observe the requirement and pay bonuses as well. Smaller firms do not always pay the minimum wage or bonuses.

The Ministry of Labor sets worker health and safety standards, which also apply in the export processing zones; however, enforcement and inspections are uneven.

The law prohibits employers from maintaining hazardous working conditions, and workers have the right to remove themselves from hazardous conditions without risking loss of employment.

f. Trafficking in Persons

The law does not prohibit specifically trafficking in persons; however, the law prohibits prostitution and sex tourism. There were no reports that persons were trafficked to, from, within, or through the country.

[End.]

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